

ORDERS ON I.A.No.3
filed by the JDR under Sec.151 of CPC
dated 05.10.2024

The learned counsel for the JDR has filed I.A.No.3 under Sec.151 of CPC to recall the order dated 24.09.2024.

2. The said application is accompanied by the affidavit of the JDR stating that this Court has issued attachment order of movable and the JDR was unable to appear before the Court and instruct her counsel to file necessary objection. The JDR is undergoing heavy financial crisis and huge personal problem is going between JDR and her husband due to the financial crisis as she is unable to pay fees to the lawyer. The JDR is suffering from illness and age related ailments. The DHR has misrepresented the facts and in fact that the DHR is liable to pay the balance advance amount to the JDR. If application is not allowed, the JDR will be put to irreparable loss. Hence, the learned counsel for JDR prayed to allow I.A No.3.

3. The learned counsel for DHR has submitted oral objection to I.A.No.3 contending that the application is not maintainable in eyes of law or on facts of case and prayed to issue attachment warrant of movables of JDR to the extent of awarded amount with police protection.

4. Heard arguments of learned respective counsels on I.A.No.3, reply arguments. Perused materials available on record.

5. The points that arise for consideration and determination are as under:-

1. Whether the JDR has made out sufficient grounds to allow I.A.No.3 so as to recall the order dated 24.09.2024?

2. What order?

6. This Court answer above points as under:-

Point No.1 : In Negative,

Point No.2 : As per the final order
for the following:-

REASONS

7. **Point No.1:-** On careful consideration of materials available on record, execution petition is filed by the DHR on 05.12.2023 for execution of decree and Judgment passed in O.S.No.1335/2017. On perusal of CIS copy of RFA No.2291/2023, the JDR has

preferred appeal and on 12.11.2024, finally two weeks time is granted to comply with office objections failing on which appeal stands dismiss. As per CIS copy of RFA No.2291/2023, stay is not granted by Hon'ble Appellate Court. The DHR is entitled to eat fruits of decree. No prima facie, genuine grounds are made out to recall order dated 24.09.2024. Hence, this Court inclines to answer Point No.1 in Negative.

8. **Point No.2**:- This Court proceed to pass the following :-

ORDER

I.A No.3 filed by the JDR under Sec.151 of CPC dated 05.10.2024 is dismissed on payment of costs of Rs.500/- payable to the DHR.

XVII Addl. City Civil & Sessions
Judge, Bengaluru.